

TERMS AND CONDITIONS OF USE

Official platform terms for customers and users

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Important: This document is a working legal draft. It should be reviewed by a South African attorney and completed with the operational details of the platform before it is published or relied upon.

GrubnBite is developed by Mega X Industries. The registered legal name and company registration number above are reproduced as supplied by the business.

1. INTRODUCTION

Welcome to GrubnBite. GrubnBite is a digital multi-service platform developed by Mega X Industries. The platform is designed to connect customers with restaurants, food businesses, delivery partners and other service providers through an integrated digital environment.

These Terms and Conditions govern access to and use of the GrubnBite website, mobile application, digital platforms and associated services.

By accessing, registering for, browsing or using GrubnBite, you acknowledge that you have had the opportunity to read these Terms and agree to the provisions that apply to your use of the platform. If you do not agree, do not use the platform.

2. DEFINITIONS AND INTERPRETATION

2.1 GrubnBite means the digital platform, including its website, mobile application, software, features and associated services.

2.2 Mega X Industries means the business identified in this document as the developer of GrubnBite and, where applicable, its platform operator.

2.3 Customer/User means an individual who accesses, registers for or uses GrubnBite.

2.4 Restaurant Partner means an independent restaurant, food outlet, grocery business or other approved merchant listed on the platform.

2.5 Delivery Partner means an individual or business authorised to provide delivery services through the platform.

2.6 Service Provider means an approved third party offering products or services through GrubnBite.

2.7 Platform Services means services made available through GrubnBite, which may include food ordering, delivery, table bookings, grocery ordering, equipment rentals, event-related services and private chef bookings.

2.8 Order means a request submitted by a customer to purchase products or services through the platform.

2.9 Account means a registered user profile created to access GrubnBite services.

2.10 Personal Information has the meaning given to it under applicable data protection legislation.

3. ELIGIBILITY AND ACCOUNT REGISTRATION

3.1 Users must provide accurate, current and complete information when creating an account.

3.2 Users must take reasonable steps to keep their login credentials confidential and must notify GrubnBite promptly if they suspect unauthorised access.

3.3 Users must not create accounts using false identities, misleading information or another person's information without proper authority.

3.4 Users must be at least 18 years old to independently enter into transactions through GrubnBite. A person under 18 may use relevant services only where legally permitted and with appropriate parental or guardian involvement.

3.5 GrubnBite may request reasonable verification where necessary to protect users, service providers or the integrity of the platform.

4. DESCRIPTION OF SERVICES

4.1 Depending on location, availability and platform functionality, GrubnBite may provide access to the following:

Food ordering and delivery: browsing participating restaurants, viewing menus, placing orders, requesting delivery or collection and tracking progress where supported.

Table reservations: discovering participating restaurants and requesting or making bookings, subject to confirmation.

Grocery services: browsing and purchasing grocery products from participating merchants, with delivery or collection where available.

Equipment and event rentals: discovering rental services, submitting requests and arranging bookings subject to the provider's terms.

Private chef services: discovering chefs, requesting quotations and booking services subject to availability and agreed conditions.

Explore and discovery: discovering restaurants, merchants, promotions, events and other listings.

AI-powered features: using available tools for food discovery, cooking recommendations, planning and logistics.

4.2 GrubnBite may introduce, modify, suspend or discontinue features as the platform develops, subject to applicable law and existing contractual commitments. Not all services will be available in every location or at all times.

5. PLATFORM ROLE AND THIRD-PARTY SERVICE PROVIDERS

5.1 GrubnBite facilitates interactions and transactions between customers and participating businesses or service providers. The precise contracting parties for each transaction should be identified at checkout or before confirmation.

5.2 Unless expressly stated otherwise for a particular transaction, restaurants, merchants, private chefs, rental businesses and other providers remain responsible for the products or services they supply.

5.3 Service providers are responsible for providing accurate listings; holding licences, registrations and permits required by law; meeting applicable safety and quality standards; fulfilling confirmed orders or bookings; and complying with consumer protection legislation.

5.4 GrubnBite may establish verification procedures. Verification or approval does not amount to an unlimited guarantee of a provider's performance, products or services.

5.5 Nothing in these Terms removes any responsibility or liability that GrubnBite or a service provider has under applicable South African law.

6. ORDERS AND TRANSACTIONS

6.1 Customers may submit orders through the functionality available on the platform.

6.2 Before confirming an order, customers should review the selected products or services, quantities, prices, delivery or collection charges, service fees, taxes, delivery details, estimated fulfilment times and any additional terms.

6.3 An order request is not accepted until the relevant confirmation is issued. A service provider may accept, decline or request clarification, subject to applicable law.

6.4 GrubnBite may communicate confirmations, updates, delays or cancellations through the application, email, SMS or other supported channels.

6.5 Customers are responsible for providing accurate delivery addresses, contact details and booking information. A material change after confirmation may require the provider's agreement.

7. PRICING AND PAYMENTS

7.1 Prices and applicable charges must be reviewed before an order or booking is confirmed.

7.2 The total amount may include product or service prices, delivery charges, platform or service fees, applicable taxes and other charges disclosed before checkout.

7.3 GrubnBite may support payment methods made available from time to time. Payments may be processed through authorised third-party payment service providers.

7.4 GrubnBite will not ask customers to disclose banking passwords, card PINs or one-time banking authentication codes to support representatives.

7.5 Customers must not use stolen payment instruments, fraudulent accounts or unauthorised payment methods.

7.6 Where payment fails, an order or booking may remain unconfirmed until payment is successfully processed.

7.7 Refunds, reversals and disputed transactions will be handled under applicable law and the GrubnBite Refund and Returns Policy.

7.8 GrubnBite may change fees prospectively, provided required disclosures are made and applicable consumer rights are respected.

8. DELIVERY TERMS

8.1 Delivery availability depends on location, participating businesses, delivery capacity and operational conditions.

8.2 Delivery estimates are indicative and may be affected by preparation times, traffic, weather, delivery partner availability, technical disruptions and other circumstances.

8.3 Customers must provide accurate delivery instructions and ensure that someone is available to receive the order.

8.4 If the customer cannot be reached or the delivery location is inaccessible, the delivery partner may contact the customer and follow the applicable failed-delivery procedure.

8.5 Customers must not request delivery partners to engage in unlawful, dangerous or inappropriate conduct.

8.6 Missing, incorrect, damaged or undelivered orders should be reported promptly through official support channels.

9. FOOD SAFETY, ALLERGENS AND PRODUCT INFORMATION

9.1 Restaurants and food businesses are responsible for preparing and supplying food in accordance with applicable food safety and hygiene requirements.

9.2 Food businesses must provide accurate product, ingredient and allergen information as required by law.

9.3 Customers should communicate known allergies and dietary requirements before ordering and contact the restaurant directly where clarification is needed about ingredients, preparation or cross-contamination.

9.4 GrubnBite may display information supplied by merchants and will take reasonable steps, where appropriate, to address reported inaccuracies. Customers should verify critical dietary information with the relevant provider.

9.5 Nothing in this section excludes statutory rights or responsibilities relating to unsafe or defective products.

10. BOOKINGS, RESERVATIONS AND RENTALS

10.1 Bookings are subject to the availability and confirmation of the relevant provider.

10.2 Customers must provide accurate booking information, including dates, times, quantities and special requirements.

10.3 Deposits or advance payments may be required. Applicable cancellation, rescheduling, deposit and refund conditions must be disclosed before the booking is completed.

10.4 Rental customers must comply with the relevant rental agreement, including collection, return, damage and security-deposit requirements.

11. CANCELLATIONS AND REFUNDS

11.1 Customers may request cancellation through the available platform channels. Requests will be assessed according to the order or booking status, the applicable policy and the law.

11.2 A customer may be entitled to a refund or other remedy where an order was paid for but not fulfilled, a provider cannot supply the product or service, the wrong product was supplied, a product is materially defective or damaged, a transaction was incorrectly charged, or a remedy is otherwise required by law.

11.3 Refunds will be processed through an appropriate payment channel, subject to payment-provider procedures and applicable legal requirements.

11.4 Customers may be asked for reasonable supporting information. GrubnBite will not use these Terms to restrict statutory cancellation, return or refund rights.

11.5 Further details will be set out in the separate GrubnBite Refund and Returns Policy.

12. CUSTOMER CONDUCT

Users must use GrubnBite responsibly and lawfully. Users must not submit fraudulent information; harass, threaten or abuse others; facilitate unlawful transactions; manipulate promotions or rewards; interfere with platform systems or security; attempt unauthorised access; upload malicious software; misuse another person's account or information; or knowingly submit false complaints or fraudulent refund claims.

13. PROMOTIONS, DISCOUNTS AND REWARDS

13.1 GrubnBite may offer promotions, discounts, vouchers, referral programmes and loyalty benefits.

13.2 Each offer may have eligibility requirements, validity periods and redemption conditions. Offers are not cumulative unless expressly stated.

13.3 GrubnBite may investigate suspected abuse and may modify or discontinue promotions prospectively, subject to existing contractual commitments and applicable law. Material restrictions will be disclosed before participation.

14. ARTIFICIAL INTELLIGENCE AND DIGITAL RECOMMENDATIONS

14.1 GrubnBite may incorporate artificial intelligence and automated technologies for food recommendations, meal planning, cooking suggestions, discovery, logistics and personalisation.

14.2 AI-generated outputs may contain inaccuracies, omissions or outdated information and are provided as assistance, not as a substitute for professional advice or a provider's responsibilities.

14.3 Users should independently verify important information, particularly information about allergens, dietary restrictions, food safety and matters affecting health or safety.

14.4 GrubnBite will address applicable personal-information processing and automated decision-making requirements in its Privacy Policy.

15. PRIVACY AND PERSONAL INFORMATION

15.1 Personal information may be processed for account administration, order fulfilment, delivery, payments, customer support, fraud prevention, security, platform improvement and legal compliance.

15.2 Information may be shared with relevant restaurants, delivery partners, payment processors and authorised service providers where reasonably necessary to provide a requested service or fulfil a transaction.

15.3 Personal information will be processed in accordance with applicable South African data protection law, including the Protection of Personal Information Act 4 of 2013 (POPIA).

15.4 Further details about collection, use, storage, sharing, retention and data-subject rights will be provided in the separate GrubnBite Privacy Policy.

16. INTELLECTUAL PROPERTY

16.1 Unless otherwise indicated, the GrubnBite brand, platform design, software, source code, interfaces, logos, graphics and written materials are owned by or lawfully licensed to the relevant rights holder.

16.2 Users may not reproduce, distribute, modify, reverse engineer or commercially exploit GrubnBite intellectual property without prior written permission, except where permitted by law.

16.3 Service providers retain ownership of their trademarks, logos, menus, product images and other materials, subject to permissions necessary to list and promote their offerings on the platform.

16.4 Users must not upload content that infringes another person's intellectual property rights.

17. PLATFORM AVAILABILITY AND MAINTENANCE

17.1 GrubnBite aims to maintain reliable access but does not guarantee uninterrupted availability.

17.2 The platform may experience scheduled maintenance, technical failures, software updates, network interruptions, third-party service disruptions, cybersecurity incidents or other operational interruptions.

17.3 GrubnBite may temporarily restrict features where reasonably necessary for maintenance, security or improvement and will take reasonable steps to restore affected services.

18. LIMITATION OF LIABILITY

18.1 Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited under South African law.

18.2 GrubnBite and its operating entity remain responsible for their own obligations and conduct as required by law. Independent providers remain responsible for their own contractual and statutory obligations.

18.3 To the extent permitted by law, GrubnBite is not responsible for loss caused solely by circumstances outside its reasonable control.

18.4 No provision excludes liability for fraud, gross negligence or other liability that may not legally be excluded, or removes rights under the Consumer Protection Act or other applicable legislation.

19. ACCOUNT SUSPENSION AND TERMINATION

19.1 GrubnBite may restrict, suspend or terminate an account where there are reasonable grounds to believe that a user has breached these Terms, engaged in fraud, compromised platform security, abused other users or providers, or used the platform unlawfully.

19.2 Where reasonably possible, the user will be informed of the reason and given an opportunity to respond. Emergency restrictions may be implemented to protect users, funds, information or platform security.

19.3 Users may request account closure through official support channels. Closure does not automatically cancel outstanding obligations or require deletion of information that must lawfully be retained.

20. COMPLAINTS AND DISPUTE RESOLUTION

20.1 Users should report issues through official support channels and provide relevant account details, order or booking references, a description of the issue and supporting evidence where available.

20.2 GrubnBite will make reasonable efforts to investigate and resolve complaints fairly.

20.3 If a dispute cannot be resolved internally, users may approach an appropriate consumer protection authority, regulator, tribunal or court. Nothing in these Terms prevents users from exercising statutory rights.

21. CHANGES TO THESE TERMS

21.1 GrubnBite may update these Terms to reflect changes in law, technology, services or operations.

21.2 Updated versions will be published through the official platform. Material changes will be communicated through appropriate channels where required.

21.3 Changes will not retrospectively remove rights or obligations arising from completed transactions, except where permitted by law.

21.4 Continued use after an updated version takes effect may constitute acceptance where legally valid.

22. GOVERNING LAW

22.1 These Terms are governed by the laws of the Republic of South Africa.

22.2 Disputes will be dealt with in accordance with applicable South African law. Nothing prevents a consumer from approaching a court, regulator or dispute-resolution body with lawful jurisdiction.

23. GENERAL PROVISIONS

23.1 If a provision is invalid or unenforceable, the remaining provisions continue to apply to the extent permitted by law.

23.2 Failure to enforce a provision does not constitute a permanent waiver of that provision.

23.3 These Terms must be read with the relevant GrubnBite policies and any additional agreements applicable to specific services.

23.4 Where a specific service agreement conflicts with these general Terms, the specific agreement governs that service to the extent of the conflict, subject to applicable law.

23.5 Use of the platform by an independent service provider does not, by itself, create an employment relationship, partnership or joint venture.

24. CONTACT INFORMATION

Platform: GrubnBite

Legal name: Mega X Industries

Company registration number: 2025/553024/07

Website: grubnbite.com

Email: megaxindustries@gmail.com

Physical address: To be inserted before publication.

Telephone: To be inserted if applicable.

25. ACCEPTANCE OF TERMS

By registering for or using GrubnBite, the user acknowledges that they have had the opportunity to review these Terms and agrees to comply with the provisions applicable to their use of the platform.

GRUBNBITE
Connecting people, businesses and experiences through technology.
Developed by Mega X Industries — Beyond No Limits.